

DEPARTMENT OF HOMELAND SECURITY (DHS)

Federal Emergency Management Agency



FEMA

PERFORMANCE WORK STATEMENT (PWS) FOR:

Disaster Overseas Transportation Support (DOTS)

U.S. Virgin Islands & Puerto Rico (VIPR)

PROCUREMENT SENSITIVE INFORMATION

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Performance Work Statement (PWS) For Disaster Overseas Transportation Support (DOTS) U.S. Virgin Islands & Puerto Rico (VIPR)

1.0 General

1.1 Background

The Federal Emergency Management Agency (FEMA) Region II has the responsibility of supporting the disaster response and recovery efforts for the severely impacted United States territories of Puerto Rico (PR) and the U.S. Virgin Islands (USVI). Hurricanes Irma & Maria have brought unprecedented damages, therefore amplifying the response and recovery effort challenges that affected FEMA's response to survivors located throughout the islands, specifically to those secluded areas like the mountain and inland regions. Accessibility issues due to damaged transportation infrastructure results in survivors waiting longer periods of time to receive life sustaining supplies.

A major part of the response and recovery effort revolves around supplying the affected area with Initial Response Resources (IRR). These include life supporting and life sustaining IRRs such as but not limited to water, meals, cots, tarps, plastic sheeting, blankets, sandbags, generators, and fuel which are needed to lessen damage before or after a disaster. FEMA lacks readiness on these islands due to the deficiency of an IRR footprint, unavailable warehousing space and minimum full time FEMA/CORE personnel in the USVI & PR to support the magnitude of this response. Additionally, FEMA needs to move Inter-agency resources and support functions into the affected areas in order to support critical needs such as infrastructure, electricity and sewage repairs; provide medical requirements and services; and bring basic human needs like water and meals to those in need.

1.2 Scope

The scope of this PWS encompasses contractor support to provide all personnel, containers, equipment, and facilities to perform Port Operations and Transportation Services from CONUS ports to PR (to include Mona (no inhabitants), Culebra, and Vieques) and USVI as well as retrograde support. Transportation needs shall be

prescribed by task order award. Coordination, accountability, and supervision of these services by the contractor are essential to ensure success of the operation.

1.2.1 Jones Act Compliance. In performing the work under this contract and task orders, the Contractor shall comply with the Section 27 of the Merchant Marine Act, 46 U.S.C. § 55102.

1.3 Objective

The objective of this PWS is to establish Indefinite Delivery, Indefinite Quantity (IDIQ) contract vehicle to obtain all-inclusive, multimodal transportation and shipping services from a Continental United States (CONUS) point of origin to Outside Continental United States (OCONUS) point of need. Task Order award and execution will be driven by the response to the disaster and particular needs. FEMA has determined that a full suite of transportation services such as maritime, and ground transportation (including point of origin at sea ports to destination) is key to fulfill the requirement. In addition, cross-docking, warehousing services, essential equipment, and all necessary labor to fulfill such transportation services, are needed to successfully complete FEMA's mission. This includes but is not limited to:

- 20, 40 and/or 53 foot containers, trailer chassis, specialized trailers (e.g. flatbeds, lowboys, refrigerated);
- container/material handling equipment including crane capabilities;
- specialized trucks (e.g. box trucks, 20 ft. pups and lift gates);
- drayage services and a robust cross docking operations;
- surface line haul services;
- staging yards and storage;
- continuous sailing/shipping without interruption, with the exception of U.S. Coast Guard restrictions or the ship's captain, on vessels due to hazardous weather;
- contractor shall be fully functional within 48 hours of task order award to provide operations for 24-hours a day, 7-days a week with all necessary Contractor labor and supervision; and
- asset tracking and management from time of possession to time of delivery at destination.

These services and resources are required to facilitate movement of various containerized commodities/breakbulk cargo from the Continental United States to various ports in PR and the USVI, and designated distribution points on the islands.

1.4 Quality of Performance

The Contractor shall ensure that the highest standard of quality is established and maintained in the performance of the contract and task orders through a quality control plan. The Government will measure and conduct surveillance of the contractor's performance to document and recognize instances of superior contractor performance, and to identify areas falling short of required performance standards early so that the Contractor and the Government may work together to identify causes and eliminate problems before they become serious. The Government's Performance Measures and the Contractor's Quality Control (QC) program requirements are described below.

1.4.1 Contractor Quality Control, Reporting and Records

1.4.1.1 Quality Control Plan. The Contractor shall establish and maintain a Quality Control Plan (QCP) to ensure quality service is provided throughout the terms of the contract. The Contractor shall submit a proposed QCP with proposal submission and a final QCP within five business days of award. The QCP shall be reviewed and updated when deemed necessary by the Contractor or the Government, to include changes necessary to prevent the recurrence of quality problems. The Contractor must sign and date the original QCP, as well as each subsequent revision. Revisions shall also be presented to the COR for review and acceptance prior to implementation. When acceptable to the Government, the original QCP, and any revisions, shall be signed and dated by the COR. The QCP should include as a minimum how the Contractor intends to meet the performance objectives and identify those areas the Contractor sees as critical to the customers for this contract, how it will monitor quality performance in those areas, and how it will maintain or exceed customer expectations, including identification and correction of problems.

1.4.1.2 Problem/Failure. The Contractor shall self-identify any problem or failure that may impact contract performance. In accordance with its QCP, the contractor should notify the COR immediately of the problem, but follow-up in writing within two (2) business days to the COR succinct written plan of action of Contractor self-identification or awareness of a potential or real problem, failure or deficiency. The Contractor shall detail the methodology for correcting the problem or deficiency in the plan of action and provide an assurance of the specific time required to bring performance back to acceptable quality levels, as applicable. The Contractor shall provide this information electronically to the COR.

1.4.1.3 Use of Quality Performance Information. Information from these reports will be compiled cumulatively to provide annual reports of past performance into the Contractor Performance Assessment Reports System (CPARS) for use in past performance evaluations.

1.4.1.4 Government Quality Assurance. Final determination that the services rendered are conforming is solely the responsibility of the Government. The Government Quality Surveillance Plan is not a substitute for Contractor quality control.

1.4.1.5 Critical Performance Requirements. The Government will monitor the Contractor's performance using predetermined quality assurance procedures and through the Government Performance Requirement Summary (PRS), Section 11.0, which will be used in this program and which also describes the contract requirements considered most critical to performance.

1.4.1.6 Performance Measurement Approaches. The CO and the COR will monitor Contractor performance and compliance with the terms and the conditions of the contract using the PRS and such standard techniques as inspections, Government generated management reports, Contractor reports and Customer feedback. The COR, in conjunction with the CO, may conduct periodic meetings with the Contractor to discuss operations, and problem areas.

1.5 Performance Requirements Summary

This contract includes a Performance Requirements Summary (PRS) at PWS 10.0. The PRS plays an integral role in the administration of the contract. In addition to any applicable inspection clauses or other related terms and conditions contained in the contract, the PRS shall serve as a primary tool for inspection and acceptance of services as facilitated by the Contracting Officer's Representative (COR). Evaluation of the Contractor's overall performance shall be in accordance with the performance standards set forth in the PRS, and will be conducted by the COR. The PRS constitutes a material aspect of the contract and will not be changed or otherwise modified without prior written approval of the Contracting Officer.

1.6 INSURANCE REQUIREMENTS

1.6.1 Cargo Insurance. The Contractor shall provide cargo insurance, at its own expense, as required by law, at least equal to the value of the cargo transported. Value will be identified at Task Order Level.

1.6.2 Port, Liability, Pollution and Environmental Insurance. The Contractor shall provide at its own expense, the appropriate amount of insurance as required by Federal, State, and local regulatory agencies and laws.

2.0 Specific Requirements/Tasks

2.1 Start and Continuous Service:

The contractor shall be fully functional within 48 hours of task order award to ensure minimum disruption to government business. The contractor shall have resources, equipment, and personnel available to perform the services outlined in this PWS and comply with the terms and conditions of the contract, 24 hours, seven days a week, otherwise instructed by FEMA. The contractor must have the capability within their network to meet the demand and respond to the movement of approximately 4,000 containers/trailers on monthly basis with enough chassis to support the continuous service required and meet the requirement defined herein. This number shall serve as an estimate as then requirements may be increased or decreased based on the severity of the disaster and potential impacts. The contractor shall also have the capacity for the movement of vehicles, utility poles and other assets not containerized.

2.2 Maritime and Ground Transportation Service Operations:

The Contractor shall provide door-to-door, cross-dock, freight forwarding service operations (sea conveyance) of FEMA life-saving resources, FEMA Equipment, supplies from FEMA's Federal Response partners, from CONUS locations and deliver to sites specified in the task orders, designated by FEMA. The Contractor shall provide the same services, supplies, and equipment for retrograde of commodities and breakbulk cargo.

2.2.1 CONUS Staging Yard

In the event the port of embarkation is saturated, FEMA may require the contractor to provide secure trailer/truck staging lot. The CONUS staging yard shall be within 20 miles radius of the Cross-Dock facility/port that includes wrap around services and can hold up to 300 trailers. Approval for staging area outside of the 20-mile radius from the Cross-Dock facility / port must be obtained from the CO / COR. The staging yard shall provide 24 hours a day, 7 days a week (24/7) access and an organized plan to temporarily hold commercial trailers, FEMA organic/owned trailers, other Federal agencies trailers and generators. The staging yard shall be a paved or graveled, clean well-lit secure yard to ensure property is kept safe from theft and vandals. The trailers will not be dropped at this yard, but it will be a holding pattern before they are triaged for delivery to Cross-Dock facility or port of embarkation. The contractor shall submit a detailed yard report of inbound and outbound truck information on a daily basis to the COR to include, origin, truck/trailer #, time arrival, time departure, and asset description.

2.2.2 Cross-Dock Facility/Port of Embarkation

The Contractor shall containerize FEMA supplies into 20-, 40-, or 53-foot shipping containers/trailers, or a combination thereof, and provide the necessary chassis/flatbed trailers to move the containers to the port for loading. This will include equipment such as vehicles that cannot be containerized. FEMA will inspect the containers contents, provide a Bill of Lading (BOL), seal the container, and affix a FEMA approved transponder (after any cross-docking has occurred). The transponder will allow for in-transit visibility while the containers are shipped via a maritime vessel. Contractor shall also plan for a staging area, reception, material handling, and loading of breakbulk cargo to include pallets, wire reels, poles, etc. as well as vehicles and other rolling stock. Prior to loading, the contractor will provide a detailed yard report of containers, breakbulk, and rolling stock under their control in the sea port of embarkation (SPOE). To ensure visibility of cargo, within twenty-four (24) hours of vessel departure, the Contractor shall provide FEMA with a Departure Visibility Report of freight details. This can be accomplished by either inputting them into FEMA's system of record Logistic Supply Chain Management System (LSCMS) via the Vendor Portal, or by completing an Advance Shipment Notification (ASN) Spreadsheet detailing the information, and thereafter submitted to FEMA. If the ASN Upload Spreadsheet is utilized, the information below is required. The information below is not all inclusive, additional details may be requested.

- Distribution Order (DO) = (FEMA will provide)
- Trailer Number = If not a physical 53' trailer, the container number will be inserted here
- Origin Facility = The site code or location from where the items originate
- Destination = The site code or location of shipped item's destination
- Estimated Delivery Date/Time = Formatted: MM/DD/YYYY 24:00 (Destination Facility Time Zone)
- Item Name = Refer to DO
- Shipped Quantity (Units) = Units (for water, one unit = one liter)

See Attachments for reference:

- Attachment: ASN Upload Spreadsheet

In order to access LSCMS via the vendor portal, the contractor will need to pass Vendor Portal Training or Logistics Carrier Gateway Training. Until that access is granted, providing the information via spreadsheet is acceptable. A third option, involving Electronic Data Interchange (EDI) between systems may also become available during the course of performance. The most important takeaway is that FEMA must receive this information no later than 24 hours after vessel departure, as visibility of cargo/contents is a top priority.

2.2.3 Port of Embarkation/Vessel

The Contractor shall load and ship the containers by ship or barge and expedite the loaded containers and/or breakbulk cargo, via ocean vessel to various ports in the USVI or PR, FOB Destinations. The Contractor shall be fully responsible for coordinating loading their vessel and must provide all container handling equipment (CHE)/ material handling equipment (MHE). The Contractor shall provide a detailed manifest with specificity of the type resource moving in a specific container. The Contractor in coordination with FEMA will reconcile the manifest with FEMA's system of record for accuracy of resource movement no later than 24 hours after departure and repeat the procedure 24 hours at the receiving port. Dedicated vessels voyage between CONUS and OCONUS ports, as well as inter-island ports may be required. Dedicated vessels shall be size equivalent of vessel capable of fitting up to 400 containers. Dedicated vessel activation shall require FEMA Transportation Management Division/ Movement Coordination Center (MCC) Chief approval.

2.2.4 Arrival at the SPOD

The Contractor shall inform FEMA within 24 hours of arrival at the sea port of debarkation (SPOD) and provide the manifest of inbound containers/equipment with an Arrival Visibility Report. The Contractor shall be responsible for providing the required documentation to clear the containers for onward movement to the destination. FEMA is responsible for providing the Contractor the priority of movements to the destination. Any FEMA containers/equipment remaining at the port will be consolidated and marked to identify the type of resource(s). If it is determined that the container cannot be received at the destination due to space or other constraints, the Contractor is responsible for locating a secure covered warehousing for storage at multiple locations, with appropriate MHE/CHE for unloading of containers. FEMA's requirement is approximately 500,000 Sq. Ft (per facility) at multiple CONUS and OCONUS facilities.

2.2.5 Port to Destination

The Contractor shall be responsible for movement of trailers/containers/equipment to destination and have MHE/CHE to discharge containers from chassis. The Contractor will maintain on site at the destination a capability (minimum of 10 chassis/flatbeds) to move containers a forward location. Once delivered, FEMA will inspect and provide written acceptance (proof of delivery or "POD") for each container by serial number at the port ("destination"). Once FEMA takes possession of the loaded containers, the contractor shall provide the first

ten days of trailer detention at no cost to the United States Government, (USG). Once the resources are removed from each container and FEMA is no longer in need of the containers the contractor will be notified and will have 24 hours to take possession of each emptied container. Detention will stop once FEMA informs the Contractor that containers are ready for recovery.

FEMA may direct specific trailers/containers to be delivered to certain towns inland by the Contractor. The Contractor shall have dedicated trucks (to include specialized trailers) for the movement of the cargo. This additional transportation destination will be submitted to the Contractor in writing. Due to the devastated conditions on the islands, numerous roads may be blocked and destroyed. When conditions exist that hamper the delivery of containers, the Contractor will make best efforts to distribute containers as directed but assume no responsibility for delivered condition of resources.

If the storm misses all of the USVI, the contractor shall return the containerized IRR commodities to FEMA Distribution Center (DC) in Puerto Rico and/or an alternate designated location in the Caribbean. FEMA will be under no obligation for any trailer retention fees while containers are being loaded at origin, loaded and staged at the contractor's staging area or while the containers are in-transit.

2.2.6 OCONUS Container Staging Services

The Contractor shall plan for a staging area, reception, material handling, container handling, and loading of breakbulk cargo to include pallets, wire reels, poles, etc. as well as vehicles and other rolling stock. The contractor shall submit a detailed yard report of containers, breakbulk, and rolling stock under their control on a daily basis to the COR.

2.3 Passenger Movement

There may be incidents where FEMA and other Federal Government Agency employees will need to travel on Contractor's ground, sea, or air modes of transportation during cargo movement or for rapid deployment of first responders. The passengers onboarding will be limited to supercargo¹ and/or critical mission-related personnel only, requiring prior approval from FEMA Transportation Management Division (TMD)/Movement Control Center (MCC). The Contractor shall not allow non-contractor passengers onboard without a copy of signed approval form (attachment X) from FEMA TMD Chief / MCC Chief. Potential passengers may include FEMA employees and other Federal Government Agency employees.

2.4 Task Order Delivery Requirement

Notification and activation must be initiated 48 hours post task order issuance to deliver the resources to the impacted areas. The contractor must guarantee availability of an ocean vessel (to include a self-containing vessel) on a 24/7 basis through-out the lifecycle of the task order and must guarantee continuous voyages until vessel movement is no longer allowed by law of the United States Coast Guard (USCG) to sail due to dangerous weather conditions, or the ship's captain prohibits it. The FEMA Contracting Officer and / or FEMA

COR will provide guidance regarding the continuous voyage termination due to hazardous weather conditions based on information received from the Regional Response Coordination Center and National Response Coordination Center USCG Liaison(s).

2.4.1 Task Order Service Status Report

For each task order issued under this contract, a BOL will be issued to the contractor. The contractor shall prepare a Task Order Service Status Report providing empty container arrival, recovery date/time, vessel scheduled load, vessel departure time, destination port arrival, offload schedule, delivery date/time to destination address.

Additionally, and in the case of air transportation, the Contractor will inform FEMA of flight schedule with type aircraft, call sign, tail number, departure time and estimated/actual arrival time at port of debarkation and detailed cargo type and description. Contractor should be prepared to coordinate aircraft download, airfield clearance, and movement to final destination.

The contractor shall submit the report in an electronic form, Microsoft Word to the COR in the time specified by the contract/order. Based on the approved BOL, Task Order Delivery Report, the COR will provide approval to move forward on all activities planned. The contractor shall request a BOL or BOL Correction prior to performing any activities not included in the plan or any modifications that differ from the BOL/Task Order.

The contractor must provide an interim and final status for each task order report, to the COR, once a task order is executed. The report must summarize objectives achieved, significant issues, problems and recommendations to improve the process in the future. This report will include, but not be limited to the following:

- Copies of all shipping reports
- Copies of BOL
- Damage Reports (if applicable complete with photographs)
- Shipping Invoices

Final inspection and acceptance of all work performed; reports and other deliverables must be approved by the COR.

3.0 Contractor Personnel

It is the responsibility of the contractor to propose qualified contractor personnel to perform all requirements specified in the PWS. As a general rule, the government should not specify education, experience or other qualifications for contractor personnel. In some instances, however, it may be necessary for the government to specify contractor qualifications, certifications, and/or education. For example, there may be a need for a Certified Public Accountant (CPA) for a requirement for financial support services. Similarly, you may deem it necessary to specify qualifications, certifications, and/or education for contractor Subject Matter Experts.

Before including education, experience or other qualifications for contractor personnel in the PWS, discuss the matter with your Contracting Officer.

3.1 Qualified Personnel

The Contractor shall provide qualified personnel to perform all requirements specified in this PWS.

The contractor must have in-depth knowledge and a high level of demonstrable expertise in the particular requirements necessary to successfully ship resources throughout the Caribbean area of operations via ocean going vessel, pre-incident (pre-hurricane landfall), as well as post-incident sustainment shipping as needed based on type of incident (post-hurricane landfall, post-earthquake, post-tsunami, etc.).

The contractor must demonstrate that both the organization and proposed key personnel can successfully complete the efforts under this acquisition (demonstrable experience shipping in the Caribbean area of operations; demonstrable experience working with local, territory, commonwealth and federal governments; demonstrable experience in rapid recovery of contractor operations pre and post incident (hurricanes, earthquakes, tsunami etc.).

The Government reserves the right to assess the technical skills, competencies, and suitability of contractor personnel and to request personnel replacements in writing if the individual's qualifications or performance are judged deficient.

The contractor shall submit in writing the availability of key personnel who will be assigned to a task before disaster activations are declared. Key personnel are all individuals who will support these tasks in a primary capacity, to include full and part-time personnel.

3.1.1 Contractor Management of Qualified Personnel

The Contractor shall be responsible for managing and overseeing the activities of all contractor personnel, as well as subcontractor efforts used in performance of this contract along with providing qualified personnel to meet both surge and disaster requirements. The contractor's management responsibilities shall include all activities necessary to ensure the accomplishment of timely and effective support performed in accordance with the requirements contained in the PWS.

3.2 Key Personnel

The Contracts Administration Program Manager and Contractor Operations Project Manager are hereby designated as key personnel for this requirement. The Government may designate additional key personnel during contract performance.

The Contracts Administration Program Manager shall be the primary technical and managerial interface between the contractor, CO and COR located at Federal Emergency Management Agency, 500 C Street SW Washington, DC 20472. The Contracts Administration Program Manager shall act for the contractor when the Contractor

Operations Project Manager is absent. The Contractor Operations Project Manager or Contracts Administration Program Manager shall have full authority to act for the contractor on all contract matters relating to daily operations.

The Contractor Operations Project Manager or alternate must be available and actively engaged on a 24/7 basis pre-issuance of the task order while operations are starting up as well as throughout the lifecycle of the task order as specified herein; to meet with government personnel on a 24/7 basis to discuss problems and strategize operational approaches to meet mission needs.

The Contractor Operations Project Manager and/or alternate shall meet with the CO/COR as often as determined necessary during operations by the FEMA CO to maintain satisfactory performance and to resolve other issues pertaining to FEMA/Contractor procedures. Virtual meetings are acceptable and encouraged. At these meetings, a mutual effort will be made to resolve all problems identified.

Written minutes of these meetings shall be prepared by the Contractor, signed by the Contractor's designated representative, and furnished to designated FEMA Official(s) within two (2) working days after the subject meeting.

The Contractor shall not replace key personnel without approval from the CO. Before replacing any individual designated as key personnel, the Contractor shall notify the Contracting Officer no less than 14 calendar days in advance, submit written justification for replacement, and provide the name and qualifications of any proposed substitute(s). All proposed substitutes shall possess qualifications equal to or superior to those of the key personnel person being replaced, unless otherwise approved by the Contracting Officer.

The justification must include a detailed explanation of the circumstances, a complete resume for the proposed substitute, and other information requested by the Contracting Officer necessary to approve or disapprove the proposed substitute. An interview may also be required. No substitutions shall be made of accepted key personnel apart from sudden illness or death or termination of employment. The COR and the CO will evaluate such requests and promptly notify the Contractor of approval or disapproval in writing.

The contractor shall identify key personnel for the total period of a contract. The contractor shall ensure the continued assignment of key personnel throughout the duration of the contract, unless substitution is authorized by the CO.

The designated Key Contract Personnel, duties and responsibilities and minimum qualifications are listed below:

Contracts Administration Program Manager

Qualifications: Contracts Administration Program Manager must possess at least 7 years of experience in the logistical arena with a strong concentration in all modes of transportation and cross docking functions; and must demonstrate experience in government and / or commercial contracts administration. Demonstrates strong

analytical and problem-solving skills. Experience managing programs directly related to business planning processes that drive improvements in contract administration, service, cost, scope, scheduling, systems or other areas as deemed necessary. Must demonstrate experience in process analysis, root cause analysis, risk management and preventative action measures. Experience in large scale emergency and disaster response and recovery initiatives with emphasis on logistical planning is a plus.

Duties: Serve as the Alternate Contractor Operations Project Manager. Serve as the primary technical and managerial interface between the contractor, CO, and the COR located at Federal Emergency Management Agency, 500 C Street SW Washington, DC 20472. Performs day-to-day management of overall contract administration, involving various projects requiring logistical support equipment and personnel at multiple locations. Organizes, directs and coordinates the planning and production of all contract support activities. Demonstrates effective written and oral communication skills. Demonstrates skills in managing large complex scopes of work covered by the contract and task orders; provides technical guidance to the Contract Operations Project Manager and contractor support personnel as it relates to work requirements; and reviews the quality of all work products. The Contracts Administration Program Manager has authority and responsibility to identify and commit resources required to support effort and serves as the liaison to corporate senior executive management should alterations to corporate structure require direct effective contract support activities. Performs analysis of documented customer requirements, directs and assists in the design of plans in support of customer requirements for moderately complex to complex task orders and logistical projects. May participate in all phases of task order development, task order execution and project risk management assessments, ensuring logistics project success through focused contract implementation and administration. Responsible for ensuring that contract task orders and logistical projects are cohesive, and fully supported by results driven decision making, and resource allocation. Ensures operational project managers are fully informed of project requirements. Provides constructive recommendations in the development of solutions in transportation, supply chain and cross dock projects, including managing complex issues, by applying in-depth industry knowledge. Maintains strong stewardship of company assets through the careful planning of major requirements and ensures timely and on-target implementation of all task order projects.

The Contracts Administration Program Manager essentials responsibilities include, but are not limited to:

- Maintains and manages the customer interface at all levels of the customer organization, to include direct reporting and coordination with FEMA CO, Program Managers and COR.
- Organizes, directs, and manages all contract administration activities, project operations and support initiatives necessary to satisfactorily perform the work required in this PWS.
- Oversees the work of multiple project managers and analysts responsible for planning and executing all the requirements dictated within this PWS.
- Provides contract status reports to the designated CO, COR and FEMA Program Managers.
- Ensures full conformance and compliance with contract requirements, scope, schedules, and costs.

Contractor Operations Project Manager

Qualifications: The Contractor Operations Project Manager must possess at least 7 years of experience in logistics and transportation operations and must demonstrate experience in all facets of the logistics, transportation and supply chain management arena. Demonstrates strong analytical, communication and problem-solving skills. Must demonstrate solid government and / or commercial experience in managing multi-faceted, multi-operational logistics projects. Experience managing logistical projects directly related to business planning processes that drive improvements in task order execution, service, cost, scope, scheduling, in-transit visibility (ITV) and other areas as deemed necessary. Demonstrates experience in process analysis, root cause analysis, risk management and preventative action measures. Experience in large scale emergency and disaster response and recovery initiatives with emphasis on logistical planning is a plus.

Duties: Manages on-site operations activities for a logistical project or subset of a larger project. Engages key stakeholders at project sites, defines, coordinates and manages operational activities, communicates changes and progress, and builds commitment and support change management. Responsible for optimal performance of work at all sites. Has full authority to act for the Contractor on all contract matters relating to daily operations of this contract. The Project Manager or alternate must be available and actively engaged on a 24/7 basis pre-issuance of the task order while operations are ramping up as well as throughout the lifecycle of the task order as specified herein; to meet with government personnel on a 24/7 basis to discuss problems and strategize operational approaches to meet mission needs. The contractor's Project Manager and/ or alternate shall meet with the CO/COR as often as determined necessary during operations by the FEMA CO to maintain satisfactory performance and to resolve other issues pertaining to FEMA/Contractor procedures. Virtual meetings are acceptable and encouraged. At these meetings, a mutual effort will be made to resolve any problems identified. Written minutes of these meetings shall be prepared by the Contractor, signed by the Contractor's designated representative, and furnished to designated FEMA Official(s) within two (2) working days after the subject meeting. Performs analysis of contract task orders requirements and assists in the execution plans to support requirements for moderately complex to complex logistical projects. Participate in all phases of risk management assessment to ensure on time required pickup and delivery of all FEMA equipment moved by the contractor while providing all required tracking information within the timeline required to FEMA Transportation. Works in conjunction with the FEMA Transportation Support Unit Lead to ensure that all tasks are staffed with appropriate support personnel and transportation resources, and that any staff turnover or inoperable resources are managed and substituted with no disruption to the contract effort. Performs analysis of task orders, directs and assists in the implementation of task order deliverables in support of mission requirements for moderately complex to complex logistical projects ranging from empty trailer yards and shuttle missions. Responsible for ensuring that FEMA disaster responses, recovery strategies and task order deliverables are synced to support all applicable customers, agency partners, industry standards, time lines and budgets. Applicable customers and inter-agency partners may not have the exact same packing slips or information entered LSCMS. The Operations Project Manager shall work closely with the COR and the Transportation Support Unit Lead assigned to those movements to ensure that the tracking information is provided correctly. Manages multiple projects from inception to delivery on schedule and within budget,

personnel and asset constraints including planning, design and execution in a multi-brand complex and austere environment, coordinating with logistics teams in the project's implementation.

Contingent on the level of response to a given disaster, the Contractor may designate additional Key Personnel, such as Contracts Administration Program Manager and Contractor Operations Project Manager sufficient to support the disaster response. The Contracts Administration Program Manager and Contractor Operations Project Manager are required to meet the qualifications as specified above and resumes for both positions will be evaluated as part of the proposal process. The Contractor shall consult and obtain approval from the CO to any new designations.

3.3 Employee Identification

3.3.1 Contractor employees visiting Government facilities shall wear an identification badge that, at a minimum, displays the Contractor name, the employee's photo, name, clearance-level and badge expiration date.

Visiting Contractor employees shall comply with all Government escort rules and requirements. All Contractor employees shall identify themselves as Contractors when their status is not readily apparent and display all identification and visitor badges in plain view above the waist at all times.

3.3.2 Contractor employees working on-site at Government facilities shall wear a Government issued identification badge. All Contractor employees shall identify themselves as Contractors when their status is not readily apparent (in meetings, when answering Government telephones, in e-mail messages, etc.) and display the Government issued badge in plain view above the waist at all times.

The Contractor shall be allowed limited access to the Government's facilities. Contractor personnel requiring access will be required to supply the drivers' name(s), truck number(s), and a copy of the pickup orders prior to their arrival at the depot and final destination(s).

3.4 Employee Conduct

Contractor's employees shall comply with all applicable Government regulations, policies and procedures (e.g., fire, safety, sanitation, environmental protection, security, "off limits" areas, wearing of parts of DHS uniforms, and possession of weapons) when visiting or working at Government facilities. The Contractor shall ensure Contractor employees present a professional appearance at all times and that their conduct shall not reflect discredit on the United States or the Department of Homeland Security. The Project Manager shall ensure Contractor employees understand and abide by Department of Homeland Security established rules, regulations and policies concerning safety and security.

3.4.1 Regulatory Compliance. In performing the work under this contract and task orders, the Contractor shall abide by and comply, with applicable statutes, ordinances, laws, codes and regulations such as, but not limited to, Safety, Environmental, Labor, Hour and Wage, Workers Compensation and Occupational Health. The Contractor shall, without additional expense to the Government, be responsible for obtaining any and all required licenses, permits and the like, required for the performance of this contract.

3.4.2. Safety and Health of Personnel. The Contractor is responsible for ensuring that proper safety and health precautions are taken to protect personnel, the general public, and property of others. All services shall be performed by individuals fully qualified and licensed in their relevant area. The Contractor shall ensure the personnel are appropriately insured with Worker's Compensation. The Contractor will ensure that subcontractors comply with these requirements.

3.4.3 Damage and Loss Reports. During operation under this contract, in all instances where cargo, or private or Government property is damaged, lost, or pilfered while in the care, custody, or possession of the Contractor or through handling by the Contractor's employees, agents, or subcontractors, the Contractor shall submit a full written SF 364 Report of Discrepancy of the facts and the Police Report provided from the State and Local Police Department explaining the extent of such damage or loss. The Contractor shall provide the aforementioned information to the COR within 24 hours following the occurrence or discovery of Damage of Loss. This information must be provided electronically via e-mail.

In instances where FEMA trailers, FEMA containers, or bulk cargo are damaged or involved in an accident, the Police Report must be obtained and SF 91 Accident Form and FEMA 119-7-1-1 Report of Survey must be completed and submitted to the COR and/or FEMA Transportation Specialist within 24 hours.

3.5 Removing Employees for Misconduct or Security Reasons

The Government may, at its sole discretion (via the Contracting Officer), direct the Contractor to remove any Contractor employee from DHS/ FEMA facilities for misconduct or security reasons. Removal does not relieve the Contractor of the responsibility to continue providing the services required under the contract. The Contracting Officer will provide the Contractor with a written explanation to support any request to remove an employee.

4.0 Other Applicable Conditions

4.1 Security

All contractor personnel who require access to DHS or FEMA information systems, routine access to DHS or FEMA facilities, or access to sensitive information, including but not limited to Personally Identifiable Information (PII), shall be subject to a full background investigation commensurate with the level of the risk associated with the job function or work being performed. FEMA's Personnel Security Division (PSD) will determine the risk designation for each contractor position by comparing the functions and duties of the position against those of a same or similar federal position, applying the same standard for evaluating the associated potential for impact on the integrity and efficiency of federal service.

Low Risk without Information System Access

Contractor personnel occupying positions or performing functions with a Low Risk designation and who do not require access to DHS or FEMA information systems may undergo a Tier 1 investigation with a credit check

and must receive a favorable adjudication thereof from FEMA PSD prior to performing work under this contract. (Also reference Facility Access).

Low Risk with Information System Access

Contractor personnel occupying positions or performing functions with a Low Risk designation and who require access to DHS or FEMA information systems shall undergo a Tier 2 Suitability Background Investigation (T2) and must receive a favorable adjudication thereof from FEMA PSD prior to performing work under this contract.

Moderate Risk

Contractor personnel occupying positions or performing functions with a Moderate Risk designation shall undergo a Tier 2 Suitability Background Investigation (T2) and must receive a favorable adjudication thereof from FEMA PSD prior to performing work under this contract.

High Risk

Contractor personnel occupying positions or performing functions with a High Risk designation shall undergo a Tier 4 Suitability Background Investigation (T4) and must receive a favorable adjudication thereof from FEMA PSD prior to performing work under this contract.

4.2 Period of Performance

The period of performance for the resulting IDIQ is one year with two one-year optional periods of performance. Each option year period shall not exceed 12 months in duration, unless mutually agreed upon and a formal modification issued by the FEMA Contracting Officer. Each task order issued will include a specific period of performance. All terms and conditions applicable to the base period shall extend to the option period(s) unless otherwise agreed upon and a formal modification issued by the FEMA Contracting Officer. The option year period(s) are subject to the availability of funds.

4.3 Place of Performance

FEMA loading/ discharging (receiving) locations are provided as historical information. The following list does not represent all loading/ discharging points, and may change contingent on disaster location and FEMA needs. Based on knowledge of the requirement and timeline, the Contractor is encouraged to recommend alternate locations to better support the mission. Specific CONUS port locations will be specified in task orders when applicable, and categorized as either Mid Atlantic, South Atlantic, or Gulf Coast. Other locations may be added to the list below, but will be categorized as one of those three. Some likely ports are:

- Jacksonville, FL (South Atlantic)
- Fort Lauderdale, FL (South Atlantic)
- Charleston, SC (Mid Atlantic)
- Port Canaveral, FL (South Atlantic)
- Port Everglades, FL (South Atlantic)

- Norfolk/Portsmouth, VA (Mid Atlantic)
- Houston, TX (Gulf Coast)
- Puerto Rico
- U.S. Virgin Islands

4.4 Hours of Operation

All contractor personnel are expected to be available and engaged in the response operations on a 24hr/7 day per week basis, as set forth in the task order during response operations or as the situation dictates.

Transportation operations must be continuous (without disruption) and shall operate on a continuous basis unless the United States Coast Guard (USCG), Department of Transportation (DOT), and Federal Aviation Administration (FAA) prohibits operation to severe hazardous conditions or other safety considerations. There cannot be any breaks in service due to lack of contractor personnel or contractor furnished equipment, resources and supplies.

4.4.1 Contingency Support. In the event of the Department of War (DOW) contingency operations or other Homeland Security actions coinciding with FEMA's disaster support, the Contractor shall fulfill the requirement under the task order without disruption to services.

4.5 Travel

Contractor travel may be required to support this requirement. All travel required by the Government outside the local commuting area(s) will be reimbursed to the Contractor in accordance with the Federal Travel Regulations. The Contractor shall be responsible for obtaining COR approval (electronic mail is acceptable) for all reimbursable travel in advance of each travel event.

4.6 Post Award Conference

The Contractor must be required to participate in a Post Award Conference with the Contracting Officer and the COR within 24 hours after the date of award. The purpose of the Post Award Conference, which will be chaired by the Contracting Officer, is to discuss technical and contracting objects.

4.7 Project Plan

The Contractor shall provide a draft Project Plan at the Post Award Conference for Government review and comment. The Contractor shall provide a final Project Plan to the COR not later than 02 business days after the Post Award Conference.

4.8 Business Continuity Plan

The Contractor shall prepare and submit a Business Continuity Plan (BCP) to the Government. The BCP Plan shall be due 02 business days after the date of award and will be updated on an annual basis. The BCP shall

document Contractor plans and procedures to maintain support during an emergency, including natural disasters and acts of terrorism. The BCP, at a minimum, shall include the following:

- A description of the Contractor's emergency management procedures and policy
- A description of how the Contractor will account for their employees during an emergency
- How the Contractor will communicate with the Government during emergencies
- A list of primary and alternate Contractor points of contact, each with primary and alternate:
 - Telephone numbers
 - E-mail addresses

4.8.1 Individual BCPs shall be activated immediately after determining that an emergency has occurred, shall be fully operational within 48 hours of activation or as directed by the Government, and shall be sustainable until the emergency situation is resolved and normal conditions are restored or the contract is terminated, whichever comes first.

In case of a life-threatening emergency, the COR shall immediately make contact with the Contractor Project Manager to ascertain the status of any Contractor personnel who were located in Government controlled space affected by the emergency. When any disruption of normal, daily operations occur, the Contractor Project Manager and the COR shall promptly open an effective means of communication and verify:

- Key points of contact (Government and contractor)
- Temporary work locations (alternate office spaces, telework, virtual offices, etc.)
- Means of communication available under the circumstances (e.g. email, webmail, telephone, FAX, courier, etc.)
- Essential Contractor work products expected to be continued, by priority

4.8.2 The Government and Contractor Project Manager shall make use of the resources and tools available to continue contracted functions to the maximum extent possible under emergency circumstances.

Contractors shall obtain approval from the Contracting Officer prior to incurring costs over and above those allowed for under the terms of this contract. Regardless of contract type, and of work location, Contractors performing work in support of authorized tasks within the scope of their contract shall charge those hours accurately in accordance with the terms of this contract.

4.9 Progress Reports

The Project Manager shall provide a (weekly progress report to the Contracting Officer and COR via electronic mail. This report shall include a summary of all Contractor work performed, including a breakdown of labor hours by labor category, all direct costs by line item, an assessment of technical progress, schedule status, any travel conducted and any Contractor concerns or recommendations for the previous reporting period.

4.10 Progress Meetings

Task Order Award: The Project Manager shall be available to meet with the COR on a daily basis and/or upon request to present deliverables, discuss progress, exchange information and resolve emergent technical problems and issues. These meetings shall take place via teleconference or in-person.

4.11 General Report Requirements

The Contractor shall provide all written reports in electronic format with read/write capability using applications that are compatible with DHS workstations (Windows XP and Microsoft Office Applications).

4.12 Intellectual Property

It is recommended that you discuss intellectual property matters with your Contracting Officer and a DHS General Law Attorney. The General Law Attorney will involve a DHS Intellectual Property Attorney, as needed.

4.13 Protection of Information

Contractor access to information protected under the Privacy Act is required under this PWS. Contractor employees shall safeguard this information against unauthorized disclosure or dissemination in accordance with the law and Government policy and regulation.

4.14 Section 508 Compliance

Pursuant to Section 508 of the Rehabilitation Act of 1973 (29 U.S.C. 794d) as amended by P.L. 105-220 under Title IV (Rehabilitation Act Amendments of 1998) all Electronic and Information Technology (EIT) developed, procured, maintained and/or used under this contract shall be in compliance with the “Electronic and Information Technology Accessibility Standards” set forth by the Architectural and Transportation Barriers Compliance Board (also referred to as the “Access Board”) in 36 CFR Part 1194. The complete text of Section 508 Standards can be accessed at <http://www.access-board.gov/> or at <http://www.section508.gov>.

1. All products, platforms and services delivered as part of this work statement that, by definition, are deemed ICT or that contain ICT shall conform to the revised regulatory implementation of Section 508 Standards, which are located at 36 C.F.R. § 1194.1 & Apps. A, C & D, and available at <https://www.gpo.gov/fdsys/pkg/CFR-2017-title36-vol3/pdf/CFR-2017-title36-vol3-part1194.pdf>. In the revised regulation, ICT replaced the term electronic and information technology (EIT) used in the original 508 standards.

Item that contains Information and Communications Technology (ICT): Electronic Documents

Applicable Exception: N/A Authorization #: N/A

Applicable Functional Performance Criteria: All functional performance criteria apply to when using an alternative design or technology that results to achieve substantially equivalent or greater accessibility and usability by individuals with disabilities than would be provided by conformance to one or more of the requirements in Chapters 4 and 5 of the Revised 508 Standards, or when Chapters 4 or 5 do not address one or more functions of ICT.

Applicable 508 requirements for electronic content features and components (including Electronic reports): Does not apply

Applicable 508 requirements for software features and components (including Electronic content and software authoring tools and platforms): All WCAG Level AA Success Criteria Apply except 2.4.1 Bypass Blocks, 2.4.5 Multiple Ways, 3.2.3 Consistent Navigation, 3.2.4 Consistent Identification, 502 Interoperability with Assistive Technology, 503 Application, 504 Authoring Tools

Applicable 508 requirements for hardware features and components: Does not apply

Applicable support services and documentation: All requirements apply

5.0 Government Terms & Definitions

[ASN – Advance Shipment Notification](#)

[AQL – Acceptable Quality Level](#)

[BCP – Business Continuity Plan](#)

[BOL – Bill of Lading](#)

[CHE – Container Handling Equipment](#)

[CO – Contracting Officer](#)

[CONUS – Continental United States](#)

[COR – Contracting Officer's Representative](#)

[CORE – Cadre of Response Employees](#)

[CPA – Certified Public Accountant](#)

[CPARS – Contractor Performance Assessment Reports System](#)

[DHS – Department of Homeland Security](#)

DO – Distribution Order

DOT – Department of Transportation

DOTS – Disaster Overseas Transportation Support

DOW – Department of War

FAA – Federal Aviation Administration

FEMA – Federal Emergency Management Agency

FOB – Forward Operating Base

ICT – Information and Communications Technology

IDIQ – Indefinite Delivery, Indefinite Quantity

IRR – Initial Response Resources

ITV – In-Transit Visibility

LSCMS – Logistics Supply Chain Management System

MCC – Movement Coordination Center

MCU – Movement Control Unit

MCT – Movement Control Team

MHE – Material Handling Equipment

OCONUS – Outside the Continental United States

POD – Proof of Delivery

PR – Puerto Rico

PRS – Performance Requirement Summary

PSD – Personnel Security Division

PWS – Performance Work Statement

QC – Quality Control

QCP – Quality Control Plan

SPOD – Sea Port of Debarkation

SPOE – Sea Port of Embarkation

TMD – Transportation Management Division

USCG – United States Coast Guard

USG – United States Government

USVI – U.S. Virgin Islands

VIPR – U.S. Virgin Islands & Puerto Rico

6.0 Government Furnished Resources

The Government does not expect to provide Government-Furnished Property in order to accomplish this requirement.

7.0 Contractor Furnished Property

The Contractor shall furnish all facilities, materials, equipment and services necessary to fulfill the requirements of this contract.

8.0 Government Acceptance Period

The COR will review deliverables prior to acceptance and provide the contractor with an e-mail that provides documented reasons for non-acceptance. If the deliverable is acceptable, the COR will send an e-mail to the Contractor notifying it that the deliverable has been accepted.

8.1 The COR will have the right to reject or require correction of any deficiencies found in the deliverables that are contrary to the information contained in the Contractor's accepted proposal.

In the event of a rejected deliverable, the Contractor will be notified in writing by the COR of the specific reasons for rejection. The Contractor may have an opportunity to correct the rejected deliverable and return it per delivery instructions.

8.2 The COR will have 02 business days to review deliverables and make comments. The Contractor shall have 02 business days to make corrections and redeliver.

8.3 All other review times and schedules for deliverables shall be agreed upon by the parties based on the final approved Project Plan.

The Contractor shall be responsible for timely delivery to Government personnel in the agreed upon review chain, at each stage of the review. The Contractor shall work with personnel reviewing the deliverables to assure that the established schedule is maintained.

9.0 Deliverables

The Contractor shall consider items in BOLD as having mandatory due dates. Items in italics are deliverables or events that must be reviewed and/or approved by the COR prior to proceeding to next deliverable or event in this PWS.

ITEM	PWS REFERENCE	DELIVERABLE/EVENT	DELIVERABLE SCHEDULE	DISTRIBUTION
1	3.4.3	Damage and Loss Reports	24 hours following the occurrence or discovery	COR
2	1.4.1	Quality Control Plan (QCP) and or Quality Assurance Surveillance Plan (QASP)	Proposed QCP with proposal submission; final copy 5 days after award. Revisions are submitted 5 days after request	COR, Contracting Officer
3	2.2.4 and 2.2.2	Arrival and Departure Visibility Report – Maritime and Ground Transport	Freight details – 24 hours of vessel departure Manifest of inbound containers/equipment – 24 hours of arrival at SPOE	COR
4	2.2.6	Container Staging Area Daily Report	Daily – detailed yard report	COR
5	2.4	Task Order Service Report	Weekly	COR

ITEM	PWS REFERENCE	DELIVERABLE/EVENT	DELIVERABLE SCHEDULE	DISTRIBUTION
6	2.4	Task Order Delivery Report (including Inspection and Acceptance)	Interim Report – after vessel departure; or as requested and negotiated with COR Final Report – 5 business days after task order completion	COR

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10.0 Performance Requirements Summary (PRS).

The PRS establishes key elements of Contractor performance that represent “mission essential” service requirements, which are identified in the table below in the “Service Output” column. These key elements are monitored through the Quality Assurance Surveillance Plan (QASP). The QASP uses the PRS metrics to assess and document contractor compliance, ensuring effective oversight and contractor performance. The “Performance Objective” column represents the standard against which Contractor performance will be measured in relation to accomplishment of the corresponding service output. The performance objective or “standard” describes the minimum acceptable level of service by the Contractor for satisfactory performance. The “Acceptable Quality Level (AQL)” column displays the maximum allowable deviation from the performance objective, which, if exceeded, evokes the negative incentive specified in the table below.

Performance Objective No.	Measures	Performance Standard	Positive Incentive	Negative incentive
1 – Response/Delivery Timeframe for Resources	Delivery within required timeframe for containers shall be specified in each task order.	Timeframe contingent on delivery mode of transportation. Urgent requirements Acceptable Quality Limit (AQL) – 98% of the time on schedule Other Requirements AQL – 95% of the time of schedule	A positive CPARS rating will be administered	If non-compliant as stated in the PWS or as specified in the Task Order, an “Unsatisfactory” CPARS rating will be earned
2 – Deliver Required Reports	Delivery in accordance with Deliverable Table (Section 9)	No more than 90% of the reports to appropriate government contract may be later than the specified time period	A positive CPARS rating will be administered	If non-compliant as stated in the PWS or as specified in the Task Order, an “Unsatisfactory” CPARS rating will be earned